

26VEUD00801 26VEUD00801

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 26VEUD00801 Hearing Date: August 27, 2026 Dept: B

Tentative Ruling

Villa Tarzana Development v. Hernandez,

Case no. 26VEUD00801

Hearing date August 27, 2026

Defendant

Hernandez's Motion to Set Aside Default and Quash Writ - UNOPPOSED

Plaintiff

Villa Tarzana Development sued defendant Hernandez for unlawful detainer.

Default judgment was entered on 5/18/26. A writ of possession issued on 5/20/26

and returned, unfulfilled, on 6/25/26. Judgment was entered 8/4/26.

Defendant

moved to set aside the default and quash the unfulfilled writ, asserting

substitute service was not effective; the motion was unopposed. The court

denied the motion for failure to provide proper notice. 7/20/26 Min. Order.

Defendant refiled the same motion to set aside and quash on 7/20/26 and filed a proof of service via first-class US mail on 7/30/26. The motion is unopposed.

Per

Code Civ. Proc. §473(b) a motion to set aside default is timely if filed

“within a reasonable time, in no case exceeding 6 months” after the order was

taken. Default was entered 5/18/26; judgment was entered 8/4/26. This motion

was filed 7/20/26. The motion is timely.

Plaintiff

filed a proof of service dated 5/11/26 asserting substitute service was affected

on 4/14/26 at 6000 Etiwanda Avenue #127, Tarzana, CA 91356, via service on a

“Jessica H. (FEMALE/ HISPANIC/ 38YRS/ 5'5"/ 170 LBS/ BLK HAIR/ BRN EYES)

MEMBER OF HOUSEHOLD).” See 5/11/26 POS.

Per

defendant’s declaration, the property’s occupants were defendant, defendant’s

male spouse/partner Johnson, defendant’s 62 year-old mother Villareal and her 1

year-old child. See Decl. Hernandez, para. 6. Defendant declares the

only occupants at the property at the time of purported service were Villareal

and the child. Id.

Defendant

asserts she received no notice a lawsuit was filed, despite having been in

active communications with plaintiff regarding defendant's pending vacating of the property. See Decl. Hernandez, paras. 8-10. Defendant asserts she vacated on 6/6/26 after a lock-out by the Los Angeles County Sheriff. Id. at para. 12.

While

a proof of service by a registered process server creates a presumption that service was effective, defendant's declaration is sufficient to defeat the presumption and establish that substitute service was not effective. As the motion is unopposed, plaintiff failed to proffer evidence or arguments showing the default or writ should stand. GRANTED. The default judgment is set aside, and the 5/20/26 writ of possession is recalled and quashed.